

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

_____ /

NOTICE OF FILING AFFIDAVIT OF VIOLATION

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, by and through their undersigned attorney, and files with the Court, the attached Affidavit of Violation of Stipulation in Lieu of Judgment and Order Granting Same.

This Affidavit of Violation and all the documents attached shall be made a part of the Court file.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Notice of Filing Affidavit of Violation of Stipulation in Lieu of Judgment and Order Granting Same been furnished via U.S. Mail upon the Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #100, Palmetto, Florida, 34221 and to Kalman Hartig at sonigenesis@outlook.com on this 5th day of June, 2025.

/s/ William C. Price, III, Esq.

William C. Price, III, Esquire

Florida Bar No. 0333824

WILLIAM C. PRICE, III, P.A.

522 Twelfth Street West

Bradenton, Florida 34205

Telephone: (941) 747-8001

Facsimile: (941) 747-3730

Primary E-Mail: pleadings@wcpricelaw.com

Attorney for Plaintiff

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
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Defendants.

AFFIDAVIT OF VIOLATION OF
STIPULATION IN LIEU OF JUDGMENT
AND ORDER GRANTING SAME

STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned authority, personally appeared CHERYL PEAKE, Park Manager of COLONIAL MANOR MHC HOLDINGS, LLC, who, being first duly sworn, deposes and says:

1. I am the Park Manager of Colonial Manor MHC Holdings, LLC, d/b/a Colonial Mobile Manor, and I am over the age of 18 and competent to testify to the matters stated herein. The statements set forth herein are based on my personal knowledge.
2. On or about May 5, 2025, I, on behalf of Colonial Manor, as Park Manager, and Defendant, KALMAN HARTIG, entered into a Stipulation for Settlement in Lieu of Judgment with Order Granting Same, which was filed with this Court. A copy of the fully executed Stipulation and Order Granting Same are attached as **EXHIBIT A**.
3. Pursuant to Paragraph 3(b) of the Stipulation, Defendant, KALMAN HARTIG, agreed to vacate Lot #100 by or before June 5, 2025 at 5:00 p.m., and not to reside at, use, or

- allow use of the premises thereafter. However, the inside and outside of Lot #100 continue to be used for the storage of books, bags, boxes, and various other miscellaneous items, creating an ongoing health hazard to the community.
4. On June 4, 2025, Defendant filed a Motion for Continuance and Extension of Time, citing no legal basis and merely seeking additional time, despite having had over a month to comply with the agreed terms. In his motion, he even acknowledged in paragraph 1(B) that "Defendant agreed to submit to the eviction on his own volition."
 5. Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, has acted reasonably and in good faith throughout this process. The vacate date of June 5, 2025 was agreed to by the Defendant. The Stipulation clearly states in Paragraphs 6 and 9 that failure to vacate entitles Plaintiff to apply to the Court for a Writ of Possession, with the only issue before the Court being a sworn statement by Plaintiff demonstrating the violation.
 6. Defendant is in direct violation of Paragraphs 3(b), 6, and 9 of the Stipulation.
 7. Accordingly, Plaintiff respectfully requests that the Court issue a Writ of Possession for the premises to take effect after ten (10) days, and grant all relief originally sought in the Complaint, including judgment for possession, as well as any unpaid amounts, costs, and attorney's fees pursuant to Fla. Stat. § 723.062. Proposed Judgment for Possession and Writ of Possession are attached hereto as EXHIBIT B and EXHIBIT C, respectively.
 8. In Defendant's Motion to Continue filed June 4, 2025, Defendant attempts to justify his failure to comply by claiming that he felt pressured into accepting the deadline to vacate the mobile home and that the agreement was unfairly motivated. These

allegations are entirely without merit. The Stipulation was entered into voluntarily, with ample time for review and legal consultation. It explicitly reflects that both parties understood and accepted the terms freely.

FURTHER AFFIANT SAYETH NOT.

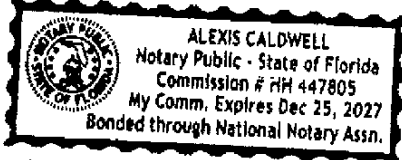
COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MOBILE MANOR
900 9th Avenue West
Palmetto, Florida 34221

By: *Cheryl Peake*
Cheryl Peake, Park Manager

STATE OF FLORIDA
COUNTY OF MANATEE

Sworn to (or affirmed) and subscribed before me by means of ☒ physical presence or ☐ online notarization, personally appeared, CHERYL PEAKE, known to be the same person described in and who executed the foregoing, and acknowledged to me that they executed the same and swear that all statements contained therein are true and correct.

IN WITNESS WHEREOF, I have here unto set my hand and seal this the 5th day of June, 2025.



{SEAL}

Alexis Caldwell
(Signature of Notary Public – State of Florida)

Alexis Caldwell
(Print, Type, or Stamp Commissioned Name of Notary Public)

X Personally Known, OR ___ Produced Identification
Type of Identification Produced _____

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

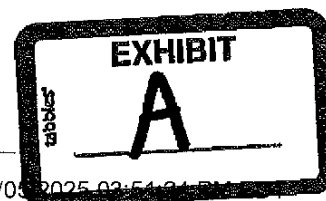
KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

STIPULATION FOR SETTLEMENT IN LIEU OF JUDGMENT WITH ORDER
GRANTING SAME

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, by the authorized agent for the Plaintiff and also through its counsel, and the Defendant, KALMAN HARTIG, by their signatures below, and hereby stipulate and agree to the following:

1. Plaintiff instituted an action against the Defendant, KALMAN HARTIG, for a writ of possession for the residence located at Colonial Mobile Manor, Lot #100, 900 9th Avenue East, Palmetto, Florida 34221 for violations of Rules and Regulations of Colonial Manor MHC Holdings, LLC pursuant to Fla. Stat. §723.061(c)(2), specifically Rule 7 pertaining to using the exterior and carport for storage, resulting in a failure to maintain the premises on Lot #100 in a neat and clean manner.
2. Defendant has asserted defenses including for equitable estoppel, retaliatory conduct, unconscionability and unlawful eviction, all of which the Plaintiff denies.
3. In lieu of further litigation, which may result in the eviction of KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION of the premises located at

Defendant Initials KH Plaintiff Initials CR



900 9th Avenue East, Lot #100, Palmetto, Florida 34221, the parties do agree to the following terms and conditions for the settlement of this cause of action:

- a. The Plaintiff will, upon the Defendant complying with this Stipulation, issue a dismissal of the eviction and damages action with prejudice, with each party bearing their own costs and fees.
 - b. KALMAN HARTIG will vacate Lot #100 of Colonial Manor and Colonial Manor by or before June 5, 2025 at 5:00 p.m. to include *all* personal contents inside and outside of the home including food (both refrigerated and not refrigerated), but shall not be required to remove the mobile home located on Lot #100, which KALMAN HARTIG may sell under the conditions outlined below. "Vacate" means not residing at, not staying the night, not allowing anyone else to reside in the home, removing all possessions from the interior of the home, removing all food, and not using the interior or exterior of the home for storage.
 - c. KALMAN HARTIG shall pay May 2025 rent directly to Colonial Manor by or before 5 p.m. May 5, 2025.
 - d. KALMAN HARTIG shall pay rent for each successive month directly to the Plaintiff until he sells the mobile home, by or before the 5th day of each successive month. All payments due hereunder shall be deemed made when actually delivered to and received by the appropriate Landlord personnel. Payment shall not be deemed made when placed in the mail.
 - e. KALMAN HARTIG agrees that by his signature on this stipulation, he is agreeing to release any remaining rent from the Registry of the Court paid by him into the Registry of the Court.
 - f. If KALMAN HARTIG does not sell the mobile home by the dates as identified below, he agrees that he has abandoned the mobile home, which Plaintiff may sell as abandoned property pursuant to Florida Statutes Chapter 715.
4. KALMAN HARTIG may hire a mobile home sales agent to sell the mobile home, and if he does, will provide a true copy of the mobile home sales agent listing agreement to the Plaintiff by or before July 31, 2025. If he does so, Defendant will have until August 31, 2025 to sell the mobile home before it is agreed by the parties that he has abandoned the mobile home.

Defendant Initials *KH* Plaintiff Initials *GP*

5. If KALMAN HARTIG does not provide a mobile home listing agreement to the Plaintiff, KALMAN HARTIG agrees that he has abandoned the mobile home as of July 31, 2025.
6. Without admitting to the validity of the Plaintiff's cause of action, Defendant agrees that if Defendant does not vacate the home by June 5, 2025 at 5:00 p.m., or otherwise violates this Stipulation, Plaintiff will be entitled to apply to the Court for a writ of possession for the mobile home lot, with the only issue to be determined by the court being, by affidavit of Plaintiff and with notice to Defendant, that the Defendant has not vacated the premises, not timely paid rent, or otherwise violated paragraph 3 or 7 of this Stipulation.
7. KALMAN HARTIG agrees to sell the mobile home only to a buyer approved by the Plaintiff. The approval of the buyer shall not be unreasonably withheld by the Plaintiff. During the pendency of the sale or until he abandons the mobile home KALMAN HARTIG, he must maintain the exterior of the home as the rules and regulations of Plaintiff require.
- (8) ~~If Defendant does not sell the mobile home by July 31, 2025, the mobile home is agreed by Defendant to constitute abandoned property which Plaintiff is entitled to sell pursuant to Chapter 715.~~ *KH as agreed on phone at 4:18 pm with Mr. Price on 5/2/25*
9. Upon Defendant's full compliance with the Settlement Agreement, Plaintiff will file a notice of dismissal of this cause of action and be responsible for its own costs and attorney fees. However, the Defendant agrees that should he violate paragraphs

Defendant Initials KH Plaintiff Initials OP

3, 6 or 7 of this Stipulation for Settlement in Lieu of Judgment, the Plaintiff shall be entitled to a writ of possession for the premises, procedurally by filing a sworn statement with the Court and providing notice to KALMAN HARTIG of the Defendant's violation, at which time, the Court shall consider by hearing scheduled by the Plaintiff with notice to the Defendant, whether KALMAN KHARTIG has violated this Stipulation. Upon substantial proof of the KALMAN HARTIG's breach, the Plaintiff shall be entitled to a writ of possession for the premises and all of its remedies originally sought in its complaint, that is, a Judgment for Possession and the issuance of a Writ of Possession as provided in Florida Statute §723.062, and a judgment for all unpaid sums and all costs and attorney fees incurred by Plaintiff in the processing of this action.

10. By this Stipulation, each of the parties, individually and collectively, acknowledge that they have had an opportunity to evaluate their respective claims and the factual support for same, and are entering into this Agreement freely and voluntarily.

11. Except as provided by this Stipulation, each of the parties agree to bear their own attorney fees, costs and expenses arising out of the instant lawsuit, and waive any entitlement in law or equity which any may have against the other as to same.

12. The laws of the State of Florida shall govern this Agreement. The venue for this cause of action is Manatee County, Florida. Each party has executed this agreement after having discussed same with their respective counsel and no one has forced or threatened the parties to execute this Agreement. This Agreement may be executed

Defendant Initials *KH* Plaintiff Initials *CH*

in counterparts, and is subject to the Florida Uniform Electronic Transactions Act. The parties anticipate that this Agreement will be filed with the Clerk of Court in Manatee County, in the above styled case docket,

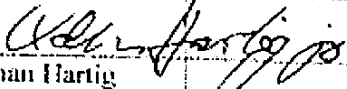
13. Upon the Defendant fully complying with this Stipulation, the Plaintiff will file its Notice of Dismissal within ten (10) days and provide same to KALMAN HARTIG by electronic mail.

14. A proposed order approving this Stipulation is attached for submission of this Stipulation to the Court.

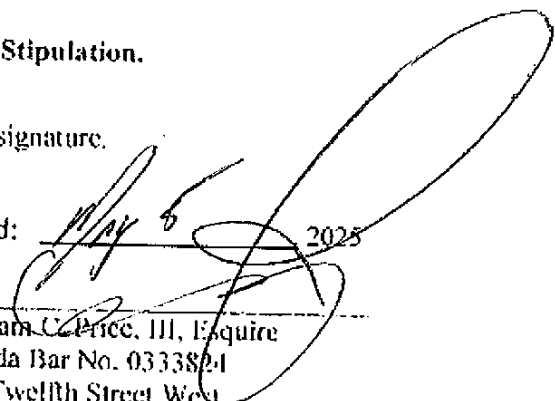
The Court reserves jurisdiction to enforce this Stipulation.

Executed by the parties on the dates identified with each signature.

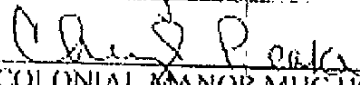
Dated: May 2nd, 2025


Kalman Hartig
900 9th Avenue East Lot 100
Palmetto, FL 34221
Email: sonigenesis@gmail.com
Pro-Se Defendant

Dated: May 6, 2025


William C. Price, III, Esquire
Florida Bar No. 0333824
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
pleadings@gwepriecelaw.com
Attorney for Plaintiff, Colonial
Manor MHC Holdings, LLC d/b/a
Colonial Mobile Manor

Dated: May 2, 2025


COLONIAL MANOR MHC HOLDINGS, LLC
By: Cheryl Peake
Park Manager

Defendant Initials  Plaintiff Initials 

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IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

**ORDER ON STIPULATION
FOR SETTLEMENT IN LIEU OF JUDGMENT**

THIS MATTER having come on to be heard upon the Stipulation in Lieu of Judgment of the parties and the Court having considered the same and being otherwise fully advised in the premises, it is hereby, **ORDERED AND ADJUDGED:**

1. That the Stipulation in Lieu of Judgment of the parties is hereby approved as set forth therein.
2. The Clerk of the Court is directed to pay to the Plaintiff the funds paid by Defendants into the Registry of the Court less Clerk of Court costs in the above styled cause of action, by mail, to:

Colonial Manor MHC Holdings, LLC- Main Office
900 9th Ave East
Palmetto, FL 34221

DONE AND ORDERED at in the Manatee County Judicial Center, Bradenton, Manatee County, Florida,
this ____ day of _____, 2025.



eSigned by HEATHER DOYLE, County Judge 05/05/2025 11:46:16 lBqvogew
COUNTY JUDGE

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Order on Stipulation for Settlement in Lieu of Judgment has been furnished by U.S. Mail to KALMAN HARTIG AND ANY UNKNOWN TENANT(s), 900 - 9th Avenue East, Lot #100, Palmetto, Florida, 34221 and by email to sonicgenesis@gmail.com and WILLIAM C. PRICE, III, ESQUIRE, 522 Twelfth Street West, Bradenton, Florida, at pleadings@wcpricelaw.com 34205, this
__5__ day of May, 2025.

Lila Mercurio

Judicial Assistant

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

JUDGMENT FOR POSSESSION

THIS CAUSE came on to be heard on Plaintiff's Complaint Seeking Possession (Eviction) and Damages. Based on the Defendants', KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION Default, having defaulted in the performance in their duty under the Stipulation entered into on May 5, 2025 and the Court having reviewed the pleadings and Affidavit of Violation sworn to by the representative of the Plaintiff in this matter and being otherwise fully advised in the premises, it is therefore:

ORDERED and ADJUDGED:

That the tenancy of Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, who occupy the home located at 900 9th Ave East Lot #100, Palmetto, Manatee County, Florida 34221, in Colonial Mobile Manor Mobile Home Park (the "Property"), is hereby terminated, and the Clerk of Court **shall issue a Writ of Possession ten (10) days from the date hereof** directing the Sheriff of Manatee County, Florida to assist the Plaintiff in removing all Defendants from the premises located above and put the Plaintiff in possession after first conspicuously posting the Writ of Possession for twenty-four (24) hours, together with any personal property, from the Property; Defendants shall be forever removed and barred from entry onto the Property forevermore.



Plaintiff shall be entitled upon execution of the writ of possession to the removal of the Defendants by the Manatee County Sheriff from the subject home and from all of Lot #100 in the park, and the Plaintiff shall also upon execution of the writ of possession be entitled to change the locks on the home pursuant to its right to store the home as provided by §723.062(2), Florida Statutes.

By changing the locks, Plaintiff is electing to store the home on the lot as allowed by the statute. Once the locks have been changed, Plaintiff is not required to provide a copy of the new keys to Defendants.

DONE AND ORDERED at in the Manatee County Judicial Center, Bradenton, Manatee County, Florida.

COUNTY JUDGE

cc: William C. Price, III, P.A.; pleadings@wcpricelaw.com; 522 12th Street West, Bradenton, FL 34205
Kalman Hartig, sonigenesis@gmail.com; 900 9th Ave East, Lot #100, Palmetto, FL 34221
Any Unknown Party(s) in Possession; 900 9th Ave East, Lot #100, Palmetto, FL 34221

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PARTY(s) IN POSSESSION,
Defendants.

_____ /

WRIT OF POSSESSION

THE STATE OF FLORIDA
TO THE SHERIFF OF MANATEE COUNTY, FLORIDA

YOU ARE COMMANDED to remove all persons from the following described property
in Manatee County, Florida, to-wit:

900 9th Avenue East, Lot 100, Palmetto, Florida 34221

and to put the Plaintiff in possession of it.

DATED on _____, 2025.

ANGELINA "ANGEL" COLONNESO
Manatee County Clerk of Courts and Comptroller

By: _____
Deputy Clerk

cc: William C. Price, III, P.A.; pleadings@wcpricelaw.com; 522 12th Street West, Bradenton, FL 34205
Kalman Hartig, sonigenesis@gmail.com; 900 9th Ave East, Lot #100, Palmetto, FL 34221
Any Unknown Party(s) in Possession; 900 9th Ave East, Lot #100, Palmetto, FL 34221

Contact Person: Cheryl Peake, Park Manager, Colonial Manor MHC Holdings, I.I.C
Telephone: (941) 722-3191

